

Neeraj Gupta And Ors. vs C.B.I. on 18 April, 2007

Author: S. Ravindra Bhat

Bench: S. Ravindra Bhat

JUDGMENT

S. Ravindra Bhat, J.

1. The petitioners have challenged an order on charge, made by the learned Chief Metropolitan Magistrate ("the trial Court") on 17.9.2005. They were charged with committing offences punishable under Section 498-A/406, read with Section 34, Indian Penal Code (hereafter called as "the IPC").

2. The first petitioner (hereafter "the husband") is the son of petitioners No. 2 and 3 and the brother of the fourth Petitioner. The husband got married to the informant, (hereafter variously "the wife" and "the complainant") Ms. Juhi Modi, on 3.7.1998. According to the first information report, (FIR) lodged by the informant wife with the police on 11.5.2000, the marriage was preceded by her parents' gifting valuables to the petitioners. When she joined the matrimonial home, the parents in law namely petitioners No. 2 and 3 expressed disappointment with the marriage arrangements and stated that their expectations were unfulfilled. It was alleged that they wanted a Mercedes car, but since they were unable to maintain it, an Opel car and Rs. 16 lakhs were to be paid. It was also alleged that the complainant's father was called to the matrimonial home in July and August, 1998 and told in no uncertain terms that Rs. 1.5 crores ought to have been given to the petitioners. As the complainant's parents could not fulfill these demands, it was alleged that the accused proceeded to hurt, humiliate and insult the respondent.

3. It was also alleged that the husband kept taunting her, alleging that she was ugly; the accused, besides, assigned her menial jobs such as washing clothes, utensils etc. They also criticized her for not doing those jobs properly. The FIR cited several instances where acts of cruelty were allegedly perpetrated on the informant. It was alleged that the complainant asked leave to visit her parents but the petitioners refused to do so. She stated that once her husband turned her out of the house early in the morning at 3.00 a.m. without any cause. The complainant alleged as follows:

On 30.9.98 my father came to meet me at New Friends Colony & brought Rs. 1,50,000/- & gave it to Suresh Kumar and Sumitra Devi. When he paid this money, they started shouting "Itne se paise se kya hoga. Apne aap ko Rai Bahadur Gujar Mal Modi ka nephew kehte ho, Exporter ho, beshumar paisa hai to humko 1.5 crores kyon nahin dete." At this point my father said he will not pay any another penny & they could do what they wanted & he left the house. On 5.10.98 I was sent to my

parents house. On 7.10.98 Neeraj took me back to his house, my parents sent all the things traditionally given on Karva Chauth. On the way back he spoke very rudely to me and told me that he had made a big mistake by marrying me. On 8.10.98 on the day of Karva Chauth Neeraj's elder sister Poonam came from Noida to spend the day. Sumitra Devi told me that my parents should have sent a silver lota & though my father is a rich exporter he has sent such small things. In the evening we all did pooja together. The Suresh Kumar, Sumitra Devi, Poonam & Sonika called me to the front room of the house, shut the door & started shouting at me. "Itni ghatia shadi hamne baniyon mein nahin dekhi. Tere ma-baap ne koi lena-dena nahin kiya. Koi reeti riwaz nahin poore kiye. Baniyon mein to paision ka lena-dena hota hee hai. Hamne kai bar tere baap se paisa manga hai aur us Modi ne saaf saaf mana kar diya hai. Hamne bhi saaf saaf kehna parega, apne ma-baap se kaho 51 lac rupay aur 51 ginni lakar Diwali se pehle hame dekar jayen. Hamare liye tum kisi kam ki nahin ho, mere ladke ke liye bahut ladkiyan hain." Sumitra Devi pulled my hair and shouted "Kaise nahin lakar denge paisa. Mein dekhti hoon. Koi baap ladki to gahr nahin baitha sakta." Then Sonika slapped me. At that moment I felt afraid for my life. Then Poonam told me to phone my parents & tell them to come & take me from there. I phoned my father & asked him to come immediately as they were again asking for money. I went to my room & sat there. After this Neeraj came from the office & he was rude and abusive. When I asked him why money was being demanded again when my father had clearly refused to pay, he hit me with his foot and told me "you have no place in this house, since your father still hasn't understood how marriages take place." In the meanwhile my father along with Mr. B.L. Gupta and Mr. G.K. Aggarwal reached there and talked to my in-laws. They insisted that my father take me with him. I left the house bare-handed because when I demanded my jewellery which is in the custody of my mother-in-law along with the articles of istri-dhan, all of them became...and abusive. This list of jewellery given to me at the wedding by my parents & parents-in-law is enclosed herewith. The aforesaid members of family of my husband along with my husband have thus committed breach of trust. That as a result of this cruel treatment to which I have been subjected my health has been gravely affected. All these months, I have been under a great deal of physical & mental torture. All the above persons harassed me to extort money from my father. I am not in a position to meet the demands of my parents-in-law, nor is my father agreeable to dole out money to them. It is with this state of mind that I am requesting you to take action against the culprits under law. In these circumstances to finish my life by suicide is the only option with which I am constantly toying. I am approaching you with the hope that you may come to my rescue. I am doing so with a complete conviction that my survival in my matrimonial home is not only difficult but impossible.

4. The complainant had moved this Court by filing a writ petition being Crl. W.P. No. 164/2000. By order dated 25.4.2000 the court directed the case to be transferred to, and investigated by, the CBI. The CBI filed a charge sheet on 20.3.2001. It proposed action against the petitioners. The trial court, after considering the submissions of the parties and the materials on record made the impugned order.

5. Learned Counsel for the petitioner submitted that the court should not to have made the order. Counsel relied upon the decree of the learned Additional District Judge in HMA 91/2006 which allowed a petition under Section 13(i)(a) of the Hindu Marriage Act filed by the petitioner husband on alleged grounds of cruelty by the complainant wife. It was contended that contrary to the allegations made in the FIR, the Additional District Judge found that the complainant was guilty of acts of cruelty and he therefore decreed divorce.

6. Learned Counsel also contended by placing reliance on the pleadings that the court did not consider any materials and facts brought on record. It was contended that the court ought to have made an effort to ascertain whether the report of the CBI was correct and whether any prima facie case against the petitioners was made out.

7. Learned Counsel submitted that the court has to sift the evidence on record and other documents to ascertain, prima facie whether any case was made out against the accused. If no credible evidence is available or if insufficient materials exist, the accused ought to be discharged. Counsel relied upon the decisions reported as Niranjana Singh Karam Singh Punjabi v. Jitendra Bhimraj Bijjaya reported as and in Dilawar Balu Kurane v. State of Maharashtra reported as .

8. Learned Counsel relied upon the order of the Chief Metropolitan Magistrate dated 8.10.2004 suggesting steps for a possible amicable settlement. According to the submission all the dowry articles were recovered; a suit is pending adjudication before the court, and further that the divorce proceeding too culminated in an order, the trial court should not have framed the charges.

9. Learned Counsel for the respondent State submitted that there were sufficient materials to warrant framing of charges under Section 498-A/406 IPC. He relied upon the contents of the charge sheet, which recorded that expensive items were given to the petitioners at the time of marriage. The counsel also stated that there were prima facie material revealing that a sum in excess of Rs. 2 lakhs was paid in cash to the petitioners who deposited it in a bank account. Bank vouchers evidencing those deposits and the details of such deposits, are part of the record. It was further submitted that the decree of divorce, relied upon, by the petitioners, could not conclude whether they were liable for the offences; the statements recorded during investigation, and the other supportive materials, furnished adequate grounds for proceeding to frame charges.

10. The factual matrix here is narrow; the informant wife married the husband in 1998. According to her allegations, levelled in the FIR in 2000, the petitioners started treating her with cruelty almost from the inception of the relationship. The reason for misbehavior, it was stated, was the failure of her parents to give sufficient dowry articles. According to the FIR, the petitioners expected her father to present a Mercedes Car but alleged that since they would be unable to maintain it they were willing to settle for an Opel Astra Car and the sum of Rs. 16 lakhs towards the difference between the price of the two cars. Besides, the complainant's father in law allegedly demand Rs. 1.5 crores from her father, keeping in mind his status. She also alleged ill treatment by all the petitioners when she lived in the matrimonial home. Apparently during the course of the investigation several valuable articles were returned to the complainant.

11. The task of the court, at the charge framing stage is to assess the overall weight of the evidence presented before it and reasonably infer whether grave suspicion exists that the accused, prima facie committed the offence alleged. The exercise of sifting the evidence involves, to a certain extent, value determination about the tentative worth of such evidence. Yet this exercise cannot be confused to a standard discharged at the time of trial i.e. proof beyond reasonable doubts. The court has to make a reasonable assessment; if upon application of such a bench mark, no prima facie case is made out, accused would be entitled to be discharged. It is also settled law that if two views are possible, the one favoring the accused is to be preferred.

12. There is some substance in the complaint of the petitioners that the allegations levelled against them seem exaggerated. Yet the court cannot at this stage discard the entirety of those allegations on the possibility of their embellishment. The statement of the complainant wife about specific instances of cruelty in 1998, the dates when demands were made and also the details of bank accounts listed in the charge sheet, where cash deposits were made by the petitioners, in my considered opinion constitute sufficient material justifying framing of charges. The decree of divorce, as is apparent, was an ex-parte one; it would be hazardous for this Court to say, on the basis of the evidence led before it, that the petitioners cannot be guilty of cruelty, within the meaning of Section 498-A. As regards the offence under Section 406 IPC, it cannot be said that the return of the disputed articles exonerated the petitioners.

13. The judgment of the Supreme Court in *State of Orissa v. Debendra Nath Padhi* is an authority on the proposition that the court should not consider materials that may be relied upon by the defense at the stage of framing charges. Therefore, reliance placed upon an ex parte decree of divorce, is of little assistance to the petitioners.

14. In view of the above discussion and having considered the materials on record, I find no infirmity or illegality in the order of the trial court, challenged in these proceedings, requiring interference. The petitions are accordingly dismissed without any order as to costs.